

21STCV26907 21STCV26907

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: DEFENDANT MARCUS MURCHINSON'S MOTION TO APPEAR REMOTELY AT TRIAL

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Case Number: 21STCV26907 Hearing Date: September 1, 2026 Dept: 731

A SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

Ernest Melendrez, an Individual,

Plaintiff,

vs.

FRIENDS OUTSIDE IN LOS ANGELES
COUNTY; MARCUS MURCHINSON (INDIVIDUAL); TREE OF LIFE BAPTIST CHURCH; WATTS
UP! Community Development Corporation CDC., and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 21STCV26907

[TENTATIVE] ORDER RE: DEFENDANT

MARCUS MURCHINSON'S MOTION TO APPEAR REMOTELY AT TRIAL

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 10

Moving Party: Defendant, Marcus Murchinson

Opposing Party: Plaintiff, Ernest Melendrez

Notice: OK

Background Facts

Pleadings

Plaintiff Ernest Melendrez sues Defendants

Friends Outside in Los Angeles County, Marcus Murchinson, Tree of Life Baptist Church, Watts Up! Community Development Corporation CDC, Mary Weaver, and Does 1-20 pursuant to an October 26, 2022, First Amended Complaint ("FAC") alleging fourteen causes of action, including retaliation under the False Claims Act and Labor Code, multiple Fair Employment and Housing Act ("FEHA") violations, wrongful termination, wage-and-hour violations, assault and battery, Private Attorneys General Act ("PAGA") penalties, and unfair competition.

The claims generally arise from allegations that in their employment of Plaintiff, Defendants misclassified Plaintiff, denied required wages and breaks, and retaliated against Plaintiff after he reported gift-card theft, double-billing, and other misconduct. Plaintiff further alleges Defendants ignored medical restrictions, created a hostile and unsafe work environment, encouraged or ratified a physical assault against him, and ultimately terminated him in retaliation for his complaints.

b. Motion

Before the Court

Now before the Court is Defendant

Marcus Murchinson's opposed motion for an order permitting Defendant Murchinson to appear telephonically at trial, currently set for October 23, 2026.

At the time that Defendant

Murchinson filed his motion on June 3, 2026, the motion was set for hearing on September 1, 2026. However, as of June 3, 2026, trial was set for June 15, 2026. Consequently, on June 4, 2026, Defendant Murchinson filed two ex parte applications, both captioned as set for hearing on June 5, 2026, seeking an order shortening the time for hearing on Defendant Murchinson's ex parte applications. Plaintiff filed an opposition to the ex parte applications on day prior, on June 3, 2026, opposing both the ex parte relief to shorten time and substantive relief to appear telephonically at trial. (The opposition appears to have been filed after notice of the ex parte application but before the ex parte application was filed.) Defendant Murchinson filed an ex parte reply on June 4, 2026. The Court denied one of the ex parte applications on June 4, 2026, and denied the second on June 5, 2026. The Court's June 5th Order

continued trial to July 13, 2026, on which date, pursuant to verbal stipulation of the parties, the Court again continued trial to October 23, 2026.

No filings by any party appear in the record beyond June 5, 2026, in connection with Defendant Murchinson's motion to appear telephonically for trial.

Motion for an Order
to Appear Telephonically

a. Legal
Standard

Subject to limited exceptions, except as otherwise provided by law and subject to certain statutory limitations, upon its own motion or the motion of any party, the court may conduct a trial or evidentiary hearing, in whole or in part, through the use of remote technology, absent a showing by the opposing party as to why a remote appearance or testimony should not be allowed. (Code Civ. Proc., § 367.75, subd. (d)(1).) Exceptions to this rule exist where the Court experiences technological difficulties enumerated in statute (Code Civ. Proc., § 367.75, subds. (b)(1)-(2), (b)(4)-(6)), or where, on a hearing-by-hearing basis, a court determines that an in-person appearance is necessary to the determination of the conference, hearing, or proceeding, or that remote attendance would materially impair the resolution of the conference, hearing, or proceeding (Code Civ. Proc., § 367.75, subd. (b)(3)).

Thereafter, except in limited circumstances enumerated in statute, if the court conducts a trial, in whole or in part, through the use of remote technology, the official reporter or official reporter pro tempore shall be physically present in the courtroom. (Code Civ. Proc., § 367.75, subd. (d)(2)(A).) If the court conducts a trial, in whole or in part, through the use of remote technology, upon request, the court interpreter shall be physically present in the courtroom. (Code Civ. Proc., § 367.75, subd. (d)(2)(B).)

Discussion

After review, the Court finds in favor of Defendant Murchinson.

By operation of statute, upon a non-resident's motion to appear telephonically at trial, relief should be granted absent a showing by the opposing party as to why a remote appearance or testimony should not be allowed (Code Civ. Proc., § 367.75, subd. (d)(1)) or applicability of exceptions to the rule (Code Civ. Proc., § 367.75, subds. (b)(1)-(6)).

Here, Defendant Murchison is a resident of the state of Louisiana. (Motion, Erlich Decl., ¶ 5.)

Consequently, relief must be granted absent a showing of necessary in-person attendance or an applicable exception, neither of which exist here.

No evidence before the Court shows the technological difficulty exceptions enumerated in Code of Civil Procedure section 367.75, subdivisions (b)(1)-(2) and (b)(4)-(6).

Moreover, nothing in the record—including Plaintiff's sole June 3, 2026, opposition—provides any basis for the Court to find that the final exception to the rule codified in Code Civ. Proc., § 367.75, subd. (b)(3) applies here, i.e., a determination on a hearing-by-hearing assessment, that in-person attendance is necessary for trial or that remote participation would materially impair the proceedings. Plaintiff's June 3, 2026, opposition, submitted during ex parte proceedings, objects to remote appearance only through conclusory assertions that remote attendance would hinder the Court's ability to conduct trial, impede Plaintiff's participation, and allow undefined "gamesmanship." (Opposition, ¶¶ 1–8.) Although the opposition correctly notes that Defendant Murchinson did not submit his own declaration in support of relief (Opposition, ¶ 9), the Court finds this omission non-fatal because the motion is supported by counsel's sworn declaration establishing that Defendant Murchinson, counsel's client, is an out-of-state resident. (Motion, Erlich Decl., ¶ 5.)

Last, based on the above reasoning, the Court determines that Plaintiff has failed to show why a remote appearance or testimony should not be allowed here.

c. Conclusion

Defendant Marcus Murchinson's
motion to appear telephonically is accordingly GRANTED.

The Court ORDERS appointment of a
certified court reporter to attend trial in person on October 23, 2026.

Defendant Marcus Murchinson is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court